

additional discussion about whether Defendant would file a motion to compel arbitration at the June 11 CMC, but Defendant would not provide an answer. (Gipson dec. ¶12.) On June 16, Plaintiff served discovery requests. (Gipson dec. ¶15.) On July 18, Defendant served responses which included objections based upon the arbitration agreement. (Gipson dec. ¶16; Cepeda supp dec. ¶2 and ex. 1.)

Here, Defendant consistently and repeatedly informed the Plaintiff and the Court that it might seek to enforce the arbitration clause. Further, while Defendant responded to Plaintiff's discovery, the response included objections based upon the arbitration agreement. Defendant has not engaged in motion practice outside of this motion and did not file a cross-complaint here or propound its own discovery. Considering all the factors, the Court finds that the facts here are insufficient to show waiver of the right to compel arbitration.

None of Plaintiff's cited cases require a different result. The cited cases show that a delay of four to six months, along with substantial motion practice and/or discovery without raising the arbitration issue constitutes waiver. (See, *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal. App. 4th 436, 446; *Adolph v. Coastal Auto Sales, Inc.* (2010) 184 Cal. App. 4th 1443, 1451–52; *Guess?, Inc. v. Superior Court* (2000) 79 Cal. App. 4th 553, 556; *Sobremonte v. Sup. Ct.* (1998) 61 Cal. App. 4th 980, 993.) Finally, in *Augusta v. Keehn & associates* (2011) 193 Cal. App. 4th 331, 338-339 the plaintiff was found to have waived the right to compel arbitration. There, the plaintiff filed a civil complaint, obtained discovery not allowed in arbitration before trying to compel arbitration.

Evidence

Plaintiff's objections to evidence were not number consecutively, however, there are only three objections and the Court has assigned them numbers 1 through 3.

The Court rules on Plaintiff's objections to evidence as follows:

1. Overruled. Defendant's Head of People is permitted to provide the dates of Plaintiff's employment. It does appear, however, that Plaintiff's employment began in 2024, and not 2022.
2. Sustained.
3. Sustained.

11. 9:00 AM CASE NUMBER: C25-00429

CASE NAME: AFONSO INFANTE VS. PALO ALTO NETWORKS, INC.

***HEARING ON MOTION IN RE: VACATE ORDER, SANCTIONS AND STATE BAR REFERRAL**

FILED BY: INFANTE, AFONSO

TENTATIVE RULING:

Plaintiff Alfonso Infante moves for an order (1) vacating and/or reconsidering two orders signed on July 21, 2025 (denying plaintiffs motion to strike defendants' motion to compel arbitration and request for default), and July 22, 2025 (granting defendants' motion to compel arbitration); (2) imposing monetary sanctions against opposing counsel; and (3) referring opposing counsel to the State Bar for disciplinary investigation. The motion was filed July 24, 2025.

Plaintiff argues that the discovery of the representations of counsel made in the course of submitting the two proposed orders for the entry by the Court constitute "new and different facts" under Code of

Civil Procedure section 1008. Alternatively, he seeks relief under Code of Civil Procedure section 473(d) to set aside a void order.

Submission of Proposed Orders

In short, after the court hearing on July 3, 2025, the court adopted the tentative ruling as the order, and defense counsel was directed to prepare an order after hearing. In the process of obtaining plaintiff's review of the proposed order under CRC 3.1312(b), plaintiff asserts that defense counsel misrepresented his objections, and therefore did not comply with the requirement that the order be submitted with "a summary of any responses of the other parties[.]"

The proposed order, as submitted to the Court and as entered, attached a copy of the entire tentative ruling. Plaintiff asserts that the fact that the court entered the orders as submitted (which duplicated the tentative rulings) was due to the misrepresentation of counsel of his position.

Defendant responds that it accurately summarized plaintiff's views and attached a copy of his proposed version of the orders. (Shmygol Dec., Ex. H.) As to the summary of plaintiff's position, the submission stated: "Plaintiff contends the form of the Proposed Order should also include the Court's rulings on evidentiary issues, in addition to attaching the minutes that include the tentative ruling."

The summary did not mislead the Court. Based on the Court's review of the email transmissions between the parties, it accurately describes plaintiff's position. Any doubt about the matter is addressed by the inclusion of plaintiff's proposed order after hearing. Accordingly, the motion to vacate or reconsider the two orders is denied.

Request for Sanctions and Referral to the State Bar.

Defendant also responds that the motion was not timely and that the request for sanctions did not comply with the 21-day safe-harbor notice provision. This appears to be correct. The Court denies the request, however, on the ground that defense counsel committed no sanctionable conduct. For the same reason, the Court denies the request to refer defense counsel to the State Bar.

Other matters

Plaintiff also complains of various actions allegedly taken by defense counsel after the submission of the order, which he claims demonstrate bad faith, and warrant vacating the arbitration order. He also seeks to modify the stay of proceedings. This must be addressed by a separate motion. (Nor is this relief expressly set forth in the mandatory notice of motion.)

Defense evidentiary objections

Because the motion is denied even if all of plaintiff's evidence is admitted, the Court will not rule on the evidentiary objections.

Conclusion

The motion is **denied**.